BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
AT AHMEDABAD
COURT-I

CP(CAA) No.14/(AHM)2022 in
CA (CAA) No. /47/(AHM) 2021

In the matter of:

Sections 230 - 232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

In the matter of:

BUILDCON FLEXIPACK PRIVATE LIMITED
A Company incorporated under the relevant
Provisions of the Companies Act, 1956
Having a registered address at:
Plot No. 328/15, Jarod Rasulabad Road,
Baroda-Halol Express Highway,
Near Referral Hospital, Jarod,
Gujarat-391510, India

.....Petitioner No. 1 Company
(Demerged Company)

TRUDER PACKAGING PRIVATE LIMITED
A Company incorporated under the relevant
Provisions of the Companies Act, 2013
Having a registered address at:
437/A, G.I.D.C.,
Makarpura, Vadodara,
Gujarat-390010, India

.....Petitioner No. 2 Company
(Resulting Company)

Order dared: 22.03.2022

Coram: DR.DEEPTI MUKESH, MEMBER (JUDICIAL)
AJAI DAS MEHROTRA, MEMBER (TECHNICAL)

Appearance:

For the Applicants: Ld. Adv. Mr. Jaimin R. Dave

ORDER

Dr. Deepti Mukesh, Member (Judicial)

1. This petition by way of Second Motion is admitted and fixed for hearing and final disposal on 27/04/2022.

2. As per record, the 1st motion application being CA(CAA) No. 47 of 2021 was allowed by this Tribunal vide order dated 16.11.2021, and the demerged company was directed to conduct the meeting of Secured Creditors. This Tribunal further directed to the Petitioner Companies to serve the notice to the Statutory Authorities viz. Registrar of Companies, Gujarat, the Regional Director -North Western Region, and the concerned Income Tax Authority and Official Liquidator.

3. This petition by way of a second motion for approval of the Scheme of the demerger is filed on 07.02.2022. Since the present petition was not filed within 7 days as per rule 15 of Companies (Arrangements and Amalgamations) Rules, 2016 from the date of filing of chairman's report. This Tribunal has condoned the delay vide order dated 16.02.2022 in IA 14 of 2022.

4. It is therefore now directed that the notice of final hearing shall be advertised in the daily newspapers namely, the "Business Standard" in English and "Divya Bhaskar" in Gujarati having circulation in Gujarat, not less than 10 days before the date fixed for final hearing.

5. In addition to the above public notice, the petitioner companies shall serve the notice of hearing of the petition on the following Authorities namely, (a) Central Government through Regional Director (Northern -Western Region) at Ahmedabad, (b)Registrar of Companies, at Ahmedabad, Gujarat (c) to the

Income Tax Department along with full details of assessing officer and PAN numbers of both the petitioner companies with the copy also to the Chief Commissioner of Income Tax Office (d) and the Official Liquidator. Authorities who may govern the working of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

6. The Petitioner Company shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to the paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator.

7. List it for the final hearing on 27/04/2022

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

Ramashish